



Exam SS22

Introduction to Business Law (Technische Universität München)



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1. Contracts [3 P]

- a) What elements do the parties necessarily need to agree on in a sale of goods contract [2 P]
- b) What is “written form” and what is “text form”? Give an example each [3 P]
- c) When does an embodied/physical declaration of intent (for example, a letter) come into force if the recipient is not present? Give an example [3 P]

2. International Private Law and Data Protection Law [7 P]

- a) What does International Private Law cover (please explain)? What is the main difference between Rome I and Rome II? [2 P]
- b) What are “overriding mandatory provisions” in International Private Law? Please explain [2 P]
- c) What does “Personal Data” mean? Please give 2 short examples of “Personal Data” [3 P]

3. Law of Business Associations (8P)

- a) What is the main advantage and the main disadvantage of running a business as a partnership (§ 705 Civil Code) [2 P]?
- b) What are the main steps that are necessary to incorporate a private limited company (GmbH)? [2 P]
- c) Name and explain two major differences between a private limited company (GmbH) and a public company (AG) [4 P]

4. Please answer the following cases questions [a) and b)] in a fully formulated memorandum! Please quote relevant statutes (33P in total)

- a) Eleven-year-old Michael (M) is a big fan of FC Bayern Munich. In Munich, he goes to the fan store on Säbener Straße and sees a scarf with Manuel Neuer’s picture for 10 euros, while all the other scarves cost 20 euros. The prices are attached to the product by a tag in each case. Delighted, he buys the cheap scarf at the checkout. M further sees the FC Bayern music toaster for 50 euros, but unfortunately does not have enough money left in his wallet, even though his pocket money account still has a credit balance of 200 euros. He asks the store owner V to send him an invoice. This request is generously granted. M takes the toaster right away.

A few days later, M no longer finds the FC Bayern music toaster cool enough (he would rather have a VfB Stuttgart music toaster) and regrets his rash decision. When the bill comes, he doesn’t want to pay. V, for this part, notices by chance that Manuel Neuer scarf purchased by M had been falsely labelled by his employee Johanna (J), the fan scarves cost 20 euros each.

- 1) Can V demand from M the payment of another 10 euros or the return of the scarf? [18.5 P]
- 2) Is M obliged to pay for the toaster? Does M have to give back the toaster? [8.5 P]

- b) 10 years later, M is now 21 years old, the love for FC Bayern Munich has not been lost. Rather, M is now an integral part of the “Schickeria” (association of numerous FC Bayern Munich fans who want to support their club in a coordinated way). After FC Bayern Munich celebrated its 10th consecutive championship against Borussia

Dortmund, M meets Kevin (K), a Borussia Dortmund fan, after the championship celebration and proudly says to K: "Mia san mia" (expression of a Bavarian attitude to life). K is visibly annoyed and intentionally hits M in the face with his fist. M then had to be hospitalized. He had to pay an additional 500 euros for special medical treatments. This was not covered by his insurance.

- 3) M wonders if K has to pay the additional 500 euros for the special medical treatments? [6 P]